Statement of Environmental Effects

Statement of Environmental Effects (SOEE) – New Dwellings and Additions

This SOEE is only to be used for new dwellings and additions in the R1 General Residential Zone.

WHY IS A STATEMENT OF ENVIRONMENTAL EFFECTS REQUIRED?
A Statement of Environmental Effects (SOEE) is a report which: • Details the proposed development; • Describes the site, including its history, constraints and context; • Addresses compliance of the proposal with relevant planning controls and regulations; and • Identifies and explains the potential impacts of your development proposal. Whilst only a brief statement is required for proposals likely to have minimal impact, you must still provide a clear explanation of why there will be little impact. This document must be uploaded with the Development Application onto the NSW Planning Portal.

APPLICATION DETAILS	
Applicants Name and Address:	
Owners (All) Name and Address:	

SUBJECT LAND		
Lot:	Section:	DP:
Address:		
What is the area of the site?		
What is the current use of the site?		
What was the previous use of the site (if known)?		
What existing structures exist on the site?		
Is the site mapped as flood prone? **Note:** In flood areas, Development Applications cannot be lodged without a **flood height survey** for new dwelling houses or extensions of more than 15% of the current house floor area.	■ Yes ☐ No	

Does the development comply with Forbes DCP Chapter 4 for flooding and flood affected land?	☑ Yes ☐ No
Is the site mapped as bushfire prone? If yes, please advise what BAL zone. Please provide further details of Bushfire Resistant Construction.	☑ Yes ☐ No
Is the site subject to any other constraints including easements, vegetation, sloping land, other? If yes, provide further details:	■ Yes ☐ No
What type of development exists on the surrounding land?	

DESCRIPTION OF THE DEVELOPMENT	
What is the proposed development?	
What is the wall material and colour of the proposed development?	
What is the roof material and colour of the proposed development?	
Is any cut/fill required? If yes, please provide details of amount: If yes do your plans reflect the cut and fill (cut and fill shown on elevations and sections).	☐ Yes ☐ No ☐ Yes ☐ No
Is any demolition required? If yes, please provide details of proposed buildings/structures to be demolished:	☐ Yes ☐ No
Is there any asbestos proposed to be removed? If yes, please provide details of amount:	☐ Yes ☐ No

PLANNING CONTROLS

FORBES LOCAL ENVIRONMENTAL PLAN 2013	
What is the zoning of the land?	R1 General Residential
Is the proposal consistent with the R1 zone objectives? The objectives of the zone are as follows: • *To provide for the housing needs of the community.* • *To provide for a variety of housing types and densities.* • *To enable other land uses that provide facilities or services to meet the day to day needs of residents.* • *To encourage all forms of residential accommodation in appropriate locations.*	☐ Yes ☐ No

Clause 7.8 Essential Services

Provide details of how the proposed development will be connected to the following essential services:

	EXISTING	HOW WILL THE SERVICE BE CONNECTED
Supply of water:		
Supply of electricity:		
Disposal and management of sewage:		
Stormwater drainage:		
Proposed vehicular access:		

Any other applicable clause:	

Note: Water, sewer and stormwater connections to the dwelling (new or alteration) will also require the lodgement of a Section 68 Local Government Act application (must be applied for on the NSW Planning Portal).

Note: Any works within the road reserve, new driveway or upgrading of an existing access will require the lodgement of a Section 138 Roads Act application (must be applied for on the NSW Planning Portal).

FORBES DEVELOPMENT CONTROL PLAN 2013

Chapter 5 – Urban Residential Development

DEVELOPMENT STANDARDS URBAN RESIDENTIAL DEVELOPMENT	
Objectives	
Does the proposed dwelling comply with the following objectives? • *(a) Ensure a high quality of residential development throughout the Forbes Shire;* • *(b) Encourage site responsive development which reflects the opportunities and constraints of individual sites and preserves or enhances its special qualities;* • *(c) Ensure development is consistent and compatible with the established streetscape and character and enhances the amenity of residential areas.*	☐ Yes ☐ No

Lot size and dimensions	
Is the subject land at least 550m^2? **Note:** In the case of a battle-axe shaped allotment, the minimum allotment size for the erection of a dwelling-house shall be 650 m^2, excluding the area of the access corridor. **Note: If no, a variation request must be submitted.**	☐ Yes ☐ No
Does the subject land have a minimum frontage at the street alignment of at least 16.8m? **Note: If no, a variation request must be submitted.**	☐ Yes ☐ No

Height	
Is the dwelling no higher than 2 storeys and 8.5m? **Note: If no, a variation request must be submitted.**	☐ Yes ☐ No
What is the height?	m^2
Note: • Height in metres is the distance measured vertically from the top most point of the building (not being a vent or chimney or the like) to natural ground level below. • A storey is the space between two floors or the space between any floor and its ceiling or roof above	

Setback to the Street	
Where the existing building line has not been established, is the dwelling setback at least 6m from the front boundary?	☐ Yes ☐ No N/A ☐
Where the lot has a depth greater than 50 metres but less than 70 metres and where an existing building line has not been established, is the dwelling setback at least 8m from the front boundary?	☐ Yes ☐ No N/A ☐
Where the lot has a depth greater than 70 metres and where an existing building line has not been established, is the dwelling setback at least 10m from the front boundary? **Note: If no, a variation request must be submitted.**	☐ Yes ☐ No N/A ☐

Note:

- On a corner allotment, one of the setbacks to the street may be reduced as a secondary setback to a minimum of 3 metres.
- A reduction in the minimum building line will only be considered where there is sufficient reasons and justification for the proposed reduction having regard to the existing adjoining development. This may include where the site is impacted by infrastructure and will be considered on a merit basis.
- Encroachments to the minimum building line are not permitted for garages to maintain stacked parking options.

Side Setback	
If single storey, is the proposed dwelling at least 900mm from the side or rear boundary?	☐ Yes ☐ No N/A ☐
If double storey, is the proposed 2nd storey at least 1500mm from the side or rear boundary? **Note: If no, a variation request must be submitted.**	☐ Yes ☐ No N/A ☐

Note: The minimum distance of eaves and gutter of a single storey building shall be 450mm. This distance shall be increased to 1125mm for the second storey of a two storey building.

Energy Conservation	
Has a BASIX certificate been provided? Is a BASIX certificate required? If yes please provide BASIX certificate number: **Note:** All residential habitable development over $50,000 requires a BASIX certificate.	☐ Yes ☐ No N/A ☐ ☐ Yes ☐ No N/A ☐ BASIX Certificate no:

Heritage	
Is the subject land within a Heritage Conservation Area or within the vicinity of a heritage item? **Note:** If yes, refer to specific considerations contained in Chapter 12 – "Heritage" of the Development Control Plan.	☐ Yes ☐ No N/A ☐

Fencing	
Is the front fence no higher than 1200mm when measured from natural ground level? **Note:** Front fencing shall be of low, open style construction compatible with the adjoining residential development.	☐ Yes ☐ No N/A ☐
Is the side fence no higher than 1800mm? **Note:** Side fencing forward of the building line shall generally be a maximum of 1200mm in height however may graduate from 1200mm to 1800mm for compatibility with the adjoining fence height. Fencing should maintain consistency with that of adjoining allotments. If the site is subject to flooding, does the fencing comply with Forbes DCP Chapter 4?	☐ Yes ☐ No N/A ☐ ☐ Yes ☐ No N/A ☐

Rainwater Tanks (if applicable)	
Is the rainwater tank sited behind the front building line (i.e. between the street and the front of the dwelling)?	☐ Yes ☐ No N/A ☐

Swimming Pools (if applicable)	
Is the pool setback a minimum 1 metre from the water's edge to all property boundaries?	☐ Yes ☐ No N/A ☐
Note: The pool must comply with the following: • An approved safety fence shall be installed around all pools. • The pumping and filtering system shall be sited and housed appropriately to minimise potential noise impacts to surrounding residences. • Resuscitation signs shall be displayed on or as close as possible to the entrance to the pool. • All pools having capacity over 40,000 litres shall be provided with a Basix Certificate. • An approved back wash system shall be installed to the satisfaction of Council. • Pool blankets and back wash storage tanks are recommended to be installed as water saving devices.	
Is there a safety fence proposed to be installed around the pool and shown on the plans? If no, what is the reason?	☐ Yes ☐ No N/A ☐

Garages, Sheds and other Outbuildings (if applicable)	
Is the height of the building (the maximum height to the ridge) no more than 5.5m?	☐ Yes ☐ No N/A ☐
Does the side and rear setbacks comply with the following? (must comply) **Note:** • Where the building has a maximum height of 4.0 metres and a maximum height of 3.0 metres to the gutter be located a minimum of 500 mm from the side or rear boundary: • Where the building has a maximum height of 5.5 metres and a maximum height of 4.0 metres to the gutter be located a minimum of 1.5 metres to the side and rear boundary.	☐ Yes ☐ No N/A ☐
Is the setback to the rear lane greater than 1m?	☐ Yes ☐ No N/A ☐
Is the floor area of the building less than 125m^2? **Note: If no, a variation request must be submitted.**	☐ Yes ☐ No N/A ☐

Materials	
What are the proposed wall materials? If the land is subject to flooding, are the materials consistent with the Forbes DCP, Chapter 4 - Schedule 1.	☐ Yes ☐ No N/A ☐
Note: • Highly reflective material, cladding or finishes, such as Zincalume, are not permitted as a wall cladding on dwellings or outbuildings • Shipping containers are not permitted in residential zones	

Variation Request (if applicable)

Council may consent to a Development Application involving departure from a control contained within the DCP, but only where Council has considered a written request from the applicant that seeks to justify the departure by demonstrating:

a) Compliance with the particular control within this DCP is unreasonable or unnecessary in the circumstance of the case; and

b) The objectives of the particular control are met or sufficiently addressed; and

c) There are sufficient environmental planning grounds to justify the departure from the particular control within this DCP; and

d) The impacts of the non-compliant proposal will not be significantly greater than a compliant proposal or may enhance the outcome.

Request (if applicable)
Any other applicable DCP clause

THE LIKELY IMPACTS OF THE PROPOSAL

Provide an assessment of the likely impacts of the proposal, and steps taken to avoid, minimise or manage any adverse impacts resulting from the proposed works. Some examples of potential environmental impacts/issues to consider may include (as relevant), but are not limited to, the following:

Will the proposal affect the amenity of surrounding residences by overshadowing/loss of privacy/loss of views/ increased noise or vibrations? If yes, provide justification as to why the proposal is appropriate.	☐ Yes ☐ No N/A ☐
Is there legal and practical access available to the development? If yes, how is this achieved?	☐ Yes ☐ No N/A ☐
Is there provision for off street car parking provided?	☐ Yes ☐ No N/A ☐
Is electricity, gas, water, sewer and telecommunications services existing and/or available to the site?	☐ Yes ☐ No N/A ☐
Will the proposal have any negative social or economic consequences in the area? If yes, describe the consequences:	☐ Yes ☐ No N/A ☐
Are there any threatened species, populations and/or ecological communities and/or their habitats on the land or nearby? If yes, list the species:	☐ Yes ☐ No
Is there any tree removal required? If yes, please provide details.	☐ Yes ☐ No
Is the site potentially contaminated? If yes, please provide details.	☐ Yes ☐ No

DECLARATION

I declare to the best of my knowledge and belief that all particulars herein are correct in every detail and all information required has been supplied.

Applicant Name:	Applicant Signature:
Date:	

OTHER REQUIREMENTS

In addition to completing this Statement of Environmental Effects, you will need o provide the following plans and documents;

1. Plans drawn to scale, including:
   a. Site plans
   b. Floor plans
   c. Redacted floor plans
   d. Elevations

2. BASIX Certificate if the build is more than $50,000 or the pool is more than 40,000 litres.

The following items are required for transportable and relocation of existing dwellings.

New transportable homes

1. A development application is required for the residential use of the land.
2. A Section 68 Approval is required for the placement of the transportable dwelling including details of appropriate construction techniques.
3. A BASIX Certificate is not required for transportable homes.
4. The front of the transportable dwelling shall be orientated toward the primary street frontage.
5. A subfloor curtain shall be provided to obscure the footing from public view.
6. Certification that the transportable house has been constructed in accordance with the BCA is to be provided prior to the transportation of the dwelling.

Relocation of Existing Dwellings

1. A photographic profile shall be provided with the DA including floor plans and elevations.
2. Structural certification of the building and cut lines shall be provided prior to the issue of the Construction Certificate.
3. Certification from a qualified Hygienist that the relocated dwelling is free from asbestos shall be provided prior to the issue of the Construction Certificate.
4. A BASIX Certificate is not required for relocated homes.
5. The front of the dwelling shall be orientated toward the primary street frontage.
6. A subfloor curtain shall be provided to obscure the footing from public view.
7. Final inspection and Occupation Certificate shall be completed within 12 months including all external finishes.